The deficient legal framework thus made the exercise of declaring an organisation proscribed or subversive largely meaningless. Finally, there were laws that existed on statute books, but were just not being enforced. The Explosives Act 1884 was one such law that mandated that the manufacture, possession, use, sale, transport and importation would be subject to government licence. If this law was being properly implemented, terrorists would not get such large amounts of explosive material at will.

In order to control the menace of terror wreaking havoc across Pakistan, it would be imperative to overhaul traditional law enforcement mechanisms, by bringing all its components within the realm of law to ensure that the criminal justice system remained functional.

Without acquiring the ability to exercise effective control over men, material and money within Pakistan, our fire-fighting operations would only have limited utility. Moreover, unless the terrorists were convicted and sentenced, it would be largely impossible to curb militancy in Pakistan. But for this to happen, a strong legal structure was required while the element of fear must be eliminated in order to allow prosecutors, police, judges and witnesses to carry out their duties.

It can be concluded that counter-insurgency military operations mostly could not neutralise the insurgents in FATA. Coupled with army operations were the peace deals and negotiations that mostly failed to sustain due to violations from either side that provided lifelines to the insurgents/terrorists. The army's prolonged engagement in COIN had a downside as the local population was annoyed by collateral damage caused by the use of military force. It ignited the Pashtun nature of 'badal' (revenge), resulting in more space and manpower for the terrorists. The strategy to use 'lashkars' (militias of tribal fighters) against the terrorists paid little dividends and created more problems. The power of laws was underestimated.

Continuous absence of officially articulated CT strategy was criminal negligence on the part of the state to tackle the menace of terrorism with the seriousness that was required. Consequently, the intelligence and LEAs performed disjointedly and painted a bleak picture of the state response to insurgency and terrorism in a lackadaisical manner.